CRISIL Limited
Corporate Identity Number: L67120MH1987PLC042363
CRISIL House, Central Avenue, Hiranandani Business Park,
Powai, Mumbai - 400 076.
Phone: +91 22 3342 3000 | Fax: +91 22 3342 3001
www.crisil.com

CRISIL Foundation

CONSULTANCY AGREEMENT

(A) CRISIL Foundation , a charitable trust incorporated under Bombay Public Charitable Trust, 1950 with its office at CRISIL House, Central Avenue, Hiranandani Business Park, Powai, Mumbai - 400076 (hereinafter referred to as the "**CRISIL Foundation**" , which expression shall, unless repugnant to the context thereof, include its permitted assigns)

AND

(B) Ms. R.Vanlalhmachhuani holding PAN **CBRPV4723K** and Aadhar Number **204699122462** aged about **26** years, Son/Daughter of Mr. **Laltanpuia,** residing at **Sawleng** (here in after referred to as the "Consultant", which expression shall, unless repugnant to the subject, context or meaning thereof, include its successors and permitted assigns)

CRISIL Foundation and the Consultant are hereafter collectively referred to as "the Parties" and individually as "Party".

WHEREAS:

A. CRISIL Foundation is *inter alia* engaged in implementing Centre for Financial Literacy (CFL) project funded by RBI and is desirous of appointing an independent Consultant to carry out services/activities more particularly described in Annexure A to this Agreement ("**Services**").

B. The Consultant has represented to CRISIL Foundation that the Consultant has requisite skills, knowledge, experience, expertise and capability to perform and carry out the Services.

C. Based on the representations and warranties of the Consultant as contained herein, CRISIL Foundation has agreed to avail the Services from the Consultant to provide the Services on the terms and conditions hereafter contained in this Agreement.

1. Scope of Services and Payment of Fees

(a) CRISIL Foundation hereby agrees to avail the Services, and the Consultant hereby undertakes to perform the Services (as described in Annexure A),

(b) The Consultant shall perform the Services and carry out its obligations hereunder with all necessary due diligence, efficiency and shall necessary devote time, attention, knowledge and skill as may be necessary to discharge Services in accordance with generally accepted professional techniques and practices,

(c) The Consultant, unless prevented by ill health or accident, shall ensure that any deliverables conform in all respects are achieved by any deadlines specified as specified in Annexure A and that the deliverables shall be fit for any purpose expressly or implicitly made known to the Consultant by CRISIL Foundation.

(d) The Consultant shall not commence any work for the identified Client other than the work described in Annexure A of the Letter without the prior written consent of CRISIL Foundation. The Consultant acknowledges that no payment shall be made to it for additional

services that have not been authorized in writing by CRISIL Foundation. The Consultant shall at all times support and safeguard CRISIL Foundation's interests in any dealings with third parties.

(e) If, either before or during the course of the provision of the Services, the Consultant becomes aware of any reason why they may not be suitable to provide or complete the Services, they shall notify CRISIL Foundation without delay

(f) The Consultant is not obliged to accept any work offered by CRISIL Foundation, in such event Consultant would immediately inform the CRISIL Foundation about the inability to perform Services. Notwithstanding above, Consultant shall be obligated to maintain confidentiality as stipulated in the Agreement.

(g) The Consultant shall not be required to devote full time to the performance of the Services and, subject to Section 2(d) of this Agreement, may perform similar services for other clients. The Agreement is non-exclusive for both parties.

(h) If the Consultant is unable to provide the Services due to illness or injury, they shall advise CRISIL Foundation of that fact as soon as reasonably practicable. For the avoidance of doubt, no Fee shall be payable as per Annexure B in respect of any period during which the Services are not provided for whatever reason (including where the Consultant has not been asked to perform Services or has declined to provide Services) except in accordance with clause (i) below

(i) Consultant shall be entitled to 2 (two) days of paid leave per month without carry forward or encashment.

(j) CRISIL Foundation is contracting for the Services and the Consultant reserves the right to determine the method, manner and means by which the Services will be performed, and the order or sequence in which the Services will be performed. CRISIL Foundation will provide minimum training to enable the Consultant to perform the Services, and that the Services will be performed with minimum supervision of CRISIL Foundation. CRISIL Foundation shall provide the Consultant with access to applications which will have regular updates about the project.

(k) For the Services rendered by the Consultant, CRISIL Foundation shall pay to the Consultant service fee ("**Fee**") on such terms and conditions as specified in Annexure A and B here to.

2. Representations, Warranties and Covenants.

(a) The Consultant represents and warrants to CRISIL Foundation that:

(i) it is competent to contract under the applicable law;

(ii) the performance of obligations as contemplated hereunder do not constitute a breach of any agreement, arrangement or understanding, oral or written entered into by it with a third Person.

(iii) the assumption of obligations hereunder does not violate any applicable law, any judgment, decree, order or award of any court, governmental agency or arbitrator.

(iv) all representations made to CRISIL Foundation either orally or in writing prior to the date hereof and shall remain true and correct till the consummation of the Services.

(b) He / she has no obligation to other individuals or business entities that would conflict with

the provision of such Services in a timely manner.

(c) He / she agrees to perform the Services in\ a proper, faithful, diligent, efficient, professional manner and shall abide by the directions and instructions that may be issued to it by CRISIL Foundation from time to time including the guidelines, policies or procedures in relation to carry out the Services as communicated in writing by CRISIL Foundation.

(d) He / she further acknowledges that in order to perform the Services, the Consultant shall use his own devices – smart mobile phone and the same shall not be provided by CRISIL Foundation to the Consultant. As part of the project, CRISIL Foundation will provide the Consultant (i) Laptop (1) to be strictly used for the completion of the Services. Upon termination of this Agreement or discontinuation of the Services, all CRISIL provided equipment along with any data or intellectual property pertaining to CRISIL Foundation or its clients shall be returned or permanently deleted there from, at CRISIL Foundation's option. The Consultant shall not retain the copy of any information whether capable of being identified as Confidential Information or not and shall evidence to CRISIL Foundation the deletion of the same.

(e) During the term of this Agreement, including any extensions hereto, the Consultant may undertake to perform any other services or other work assignment for any other party (except for any company engaged in similar/competing business of CRISIL Foundation for whom the Consultant has been engaged by CRISIL Foundation to render Services). Without prejudice to the foregoing, the Consultant shall be at a liberty to perform services for other clients/companies on the days or times when he is not performing the Services, without impacting his/ her obligations to perform the Services during the term of this Agreement or any renewals thereof.

(f) He / she shall provide feedback to, engage in conversations with, the clients which are related to their services and basis the generic guidelines provided by CRISIL Foundation.

(g) He / she acknowledges that Fee shall be payable for Services accepted by CRISIL Foundation.

(h) He / she shall not have any authority to incur any expenditure in the name of or for the account of CRISIL Foundation or any group company other than the electricity bill, reasonable photo copying charges or any other reasonable out of pocket expenses all put together which shall be as per the limit set by CRISIL Foundation, from time to time..

(i) He / she shall not enter into legally binding obligations or make commitments on behalf of CRISIL Foundation or any group company except, in each case, with the express prior written consent of CRISIL Foundation or a group company.

(j) He / she shall not hold themselves out as having authority to bind CRISIL Foundation or any group company

(k) He / she shall comply with all reasonable standards of safety and comply with CRISIL Foundation industry accepted health and safety procedures from time to time in force at the premises where the Services are provided and inform CRISIL Foundation any unsafe working conditions or practices or any other concerns which may materially impact Services.

(l) He / she shall promptly report to CRISIL Foundation any request or demand for any undue financial or other advantage of any kind received by the Consultant in connection with the

performance of this Agreement.

3. Term

Subject to earlier termination in accordance with the terms of this Agreement, the term of this Agreement shall commence on the date of its execution and continue to be in effect for 12 (Twelve) months (hereinafter referred to as "Initial Term"). The Initial Term may be further renewed mutually by the Parties in writing. CRISIL Foundation is not obligated to immediately extend the term of the Agreement after the Initial Term.

4. Termination for Cause

Either Party may terminate this Agreement upon written notice of termination given to the other Party:

i. if the other Party shall have committed a material breach or default under this Agreement, which breach or default shall not be remedied within thirty (30) days after receipt of written notice thereof by the Party in breach or default. In such an event the Consultant shall be entitled to receive payment of Fees for all Services rendered up to the termination date, but CRISIL FOUNDATION shall have no other liability to the Consultant as a result of the termination of this Agreement;

ii. immediate termination (without any liability to CRISIL Foundation), if any document, information, data or statement submitted by the Consultant herein, based on which the Consultant was considered eligible or successful, is found to be false, incorrect or misleading.

iii. if the Service of the Consultant is found non-satisfactory by giving 30 (thirty) days' notice.

iv. as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than 30 (thirty)days.

5. Termination for Convenience

CRISIL Foundation may terminate this Agreement by providing the Consultant, at any time, 30 (thirty) days written notice of such termination without assigning any reasons whatsoever for the same. If CRISIL Foundation elects to terminate this Agreement pursuant to this Section 5, Consultant shall be entitled to receive payment of Fees for all Services rendered up to the termination date, but CRISIL Foundation shall have no other liability to consultants a result of the termination of this Agreement.

6. Surviving Obligations

The expiration or termination of this Agreement shall not (a) prejudice any remedy either Party may have against the other for breach or non-performance of their obligations, (b) relieve either Party of any liability or obligation which has accrued or arisen prior to the effective date of such expiration or termination, or (c) affect the continued operation or enforcement of any provision of this Agreement which by its express terms or by its nature is intended to survive any such expiration or termination including, without limitation, the provisions contained in Sections 12 and13.

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7. Rules of Conduct

The Consultant shall abide by all of the rules and regulations of CRISIL Foundation (safety, security and otherwise) while performing Services under this Agreement. The Consultant shall perform Services hereunder in compliance with all applicable local, state and federal laws and regulations.

8. Independent Consultant Status

(a) The relationship of the Consultant to CRISIL Foundation will be that of independent consultant and nothing in this Agreement shall render them an employee, worker, agent or partner of CRISIL Foundation nor any group company, and the Consultant shall not hold themselves out as such.

(b) This Agreement constitutes a contract for the provision of services and not a contract of employment and accordingly the Consultant shall be fully responsible for and shall indemnify CRISIL Foundation and/or any group company for and in respect of (i) any income tax, insurance and social regulatory or legal contributions and any other liability, deduction, contribution, assessment or claim arising from or made in connection with the performance of the Services, where the recovery is not prohibited by law. The Consultant shall further indemnify CRISIL Foundation against all reasonable costs, expenses and any penalty, fine or interest incurred or payable by CRISIL Foundation in connection with or in consequence of any such liability, deduction, contribution, assessment or claim other than where the latter arise out of CRISIL Foundation's negligence or willful default; and (ii) any liability arising from any employment-related claim or any claim based on employee / worker status (including reasonable costs and expenses) brought by the Consultant against CRISIL Foundation arising out of or in connection with the provision of the Services, except where such claim is as a result of any act or omission of CRISIL Foundation.

(c) CRISIL Foundation may at its option satisfy such indemnity (in whole or in part) by way of deduction from any payments due to the Consultant.

9. Insurance

The Consultant shall be solely liable for all the expenses that may arise on account of being involved in any accident, disability or death while rendering the Services. For this purpose, the Consultant represents and warrants to CRISIL Foundation that it shall effect and maintain at all times, at its own cost, valid insurance policy covering potential damages, loss, injury, personal accident and death during the Term of this Agreement and shall provide, upon request, valid proof of required insurance policy. Consultant shall further notify CRISIL Foundation, in writing, within 5 (five) business days of any cancellation or material change to such insurance policy. Notwithstanding the foregoing, the Consultant shall have an option to obtain the insurance policy from CRISIL Foundation insurer and have the premium set off against its fee.

10. Statutory Compliances

The Consultant shall comply with all Central, state and local laws, regulations and rules. The Consultant shall be responsible for the payment of any and all costs, fines or expenses incurred in connection with Consultants violation or alleged violation of any such laws, regulations or rules. In addition, Consultant shall maintain all licenses and permits necessary for the performance of Services and as required by all relevant governing authorities.

11. Intellectual Property

All intellectual property, if any, which pertains to the Services rendered by the Consultant hereunder, including, without limitation, any know- how, inventions, data, sketches, drawings, plans, blueprints, recommendations, concepts, designs, research, information, data, materials and all other matter which the Consultant generates in the course of, or as a result of, Services performed under this Agreement, whether of a technical, operational, or economic nature, and any improvements or inventions based thereon and any patent and/or copyright applications directed thereto and any patents and/or copyrights issuing there from which are conceived or developed by the Consultant, solely or jointly with CRISIL Foundation("**Intellectual Property**"), shall be the sole property of CRISIL Foundation. The Consultant agrees to execute any documents or take any other actions as may reasonably be necessary, or as CRISIL Foundation may reasonably request, at CRISIL Foundation expense, to perfect CRISIL Foundation perpetual ownership of Intellectual Property.

12. Force Majeure

For the purposes hereof, force majeure shall mean circumstances beyond the reasonable control of a Party, including but not limited to act of God, inclement weather, flood, lightning, fire, industrial action, epidemic/pandemic, lockouts, the act or omission of Government or other competent authority, unexpected change of laws, rules and regulations including on account of any epidemic/pandemic, acts of terrorism, war, military operations, revolution, insurrection or riot or disruptions in or failures of banking services.

Notwithstanding anything contained herein, if and to the extent that either Party ("Affected Party") acting and having acted reasonably, is hindered or prevented from performing any of its obligations under this Agreement by a Force Majeure event, such Party shall be relieved of all liability for failure to perform its obligations under this Agreement.

The Affected Party shall promptly notify the other Party, of the estimated extent and duration of such inability to perform its obligations and shall take all reasonable steps available to it to remedy any Force Majeure event and to minimize the effects thereof. If CRISIL Foundations the Affected Party who is unable to utilize the services of the Consultant due to any Force Majeure event, then in that case the obligation of CRISIL Foundation to make any payment to the Consultant including payment of fees as provided in Annexure A hereof shall abate for the duration of the affected period and until CRISIL Foundation is in a position to utilize the Services.

Upon the cessation of the Force Majeure event the Affected Party shall promptly notify the other Party of such cessation.

13. Indemnification and Liability

The Consultant hereby indemnifies and agrees to keep CRISIL Foundation fully indemnified from and against all costs, charges, direct loss or damage, claims, losses, suits, disputes or differences, liabilities, damages and penalties that may be borne or suffered by or caused to CRISIL Foundation by reason of any act or omission, delay, negligence, default (willful or otherwise), error, breach of this Agreement or the Consultant's non-performance of this Agreement or failure to comply with applicable statutory laws in performance of his obligations of this Agreement or the representations, warranties, obligations or covenants as contained herein or non-compliance (fully or partly) with the requirements of the Applicable Laws by the Consultant. The aforesaid indemnification shall be without prejudice to any other claim/judicial remedy that CRISIL Foundation may have whether by way of injunctive or mandatory relief or otherwise. This Clause shall survive the termination of this Agreement. CRISIL Foundations total aggregate liability under or in connection with the Agreement Whether arising in tort (including negligence), breach of contract, breach of statutory duty or otherwise, shall, in aggregate, not exceed total fees paid by CRISIL Foundation under this Agreement.

14. Confidential Information

(a) CRISIL Foundation or its clients may grant the Consultant access to Confidential Information, as hereinafter defined. The Consultant hereby acknowledges that all Confidential Information received under this Agreement constitutes a valuable trade secret and is the sole and exclusive property of CRISIL Foundation/its client. The Consultant shall use the Confidential Information only as may be necessary in the ordinary course of performing the Services as an independent Consultant for CRISIL Foundation. Except as specifically agreed to in writing, Consultant shall not at any time during the term of this Agreement, directly or indirectly communicate or disclose to any person not specifically authorized by CRISIL Foundation or use for his or their own account or personal benefit any Confidential Information. The term "Confidential Information" as used herein means any information acquired during or by reason of the Consultant's performance of Services pursuant to this Agreement including, but not limited to, information in any format pertaining to corporate strategic plans, budgets, profit & loss data, raw material costs, identity of suppliers, customer lists, pricing, customer information, employee information, advertising and marketing plans, sales plans, new product developments, proposed launches, discontinuance of existing products, product and consumer testing data, sales and market research, technology research & development, formulae, processes, methods, machines, ideas, concepts, improvements, inventions, and associations with other organizations which CRISIL Foundation or its clients has not previously made available to the public.

(b) The obligations contained in this Section 14 shall survive the expiration or termination of this Agreement but shall not apply in the event and to the extent that Consultant can show by written evidence that the disclosed information (i) at the time of disclosure was in the public domain, or

(ii) was in the Consultant's possession at the time of disclosure hereunder as evidenced by written records of Consultant and which the Consultant without breach of any obligation was free to disclose to others.

15. **Return of Property**. At the expiration or termination of term hereof for engagement of Services, or otherwise at the request of CRISIL Foundation during the term hereof, the Consultant shall return all property, including but not limited to all files, documents, notebooks, reports, Agreements, copies, manuals, drawings, blueprints, identification cards, keys, equipment, discs, e-mails, CD-ROMS and all other software, data and materials, however stored, relating to CRISIL Foundation / client's business, including all Confidential Information and/or Intellectual Property, in the Consultants possession or control. The Consultant shall also, upon CRISIL Foundation request and after returning to CRISIL Foundation the above information, destroy or permanently erase/delete any Confidential Information and/or Intellectual Property from his electronic files, including electronic, magnetic, optical or other storage media. The Consultant shall not retain any copies of such Confidential Information and/or Intellectual Property except as directed or authorized by CRISIL Foundation, and shall, upon CRISIL Foundation's request, provide written certification of the removal/deletion of such matter.

16. **Notices**

All notices/communications required or authorized to be delivered by the Parties at the addresses mentioned below and shall be in writing and sent by registered post/facsimile/email and shall be deemed to have been received forty-eight (48) hours after such posting:

If to the Consultant:
Kind attn.:- Ms. R.Vanlalhmachhuani
Email- rvanlalhmachhuani1997@gmail.com
Address- Sawleng

If to CRISIL Foundation:
Kind attn.:- Shakti Bhise
Email - shakti.bhise@crisil.com
Address-CRISIL House, Central Avenue, Hiranandani Business Park, Powai, Mumbai- 400 076, India

17. **Governing law and Jurisdiction**

The validity and interpretation of this Agreement and the legal relations of the Parties to it shall be governed by the laws of India. Any dispute arising out of /arising from or related to this Agreement shall be subject to the sole jurisdiction of Courts of Mumbai which both the Parties expressly consent to the jurisdiction for the purposes of resolving such dispute.

18. This Agreement, including all exhibits, sets forth the full understanding of the Parties with regard to the subject matter hereof, and supersedes any and all prior oral or written communications,

promises and representations between the Parties regarding the subject matter hereof. This Agreement may be amended/extended only by a document in writing executed by Consultant and a duly authorized official of CRISIL Foundation. A waiver by either Party hereto of a breach of any term or provision of this Agreement shall not be construed as a waiver of any subsequent breach.

19. **Public Announcements**:
Consultant may not make any public disclosures / announcements of any kind which about the Agreement, except with the express prior written consent of CRISIL Foundation in each case (as well as approval of the content, form, mode and duration of the public announcements), other than those required under any statutory or regulatory disclosures.

20. Consultant may not assign, transfer, sub-contract or novate any part of this Agreement to any other party except with the consent of CRISIL Foundation.

21. **Economic and Trade Sanctions:**
As of the date of this Agreement, Consultant represented that Consultant is not the subject of any economic or trade sanctions or restrictive measures issued by the United Nations, United States or European Union ("Sanctions"), For so long as this Agreement is in effect, Consultant will promptly notify CRISIL Foundation if any of these circumstances change. If CRISIL Foundation reasonably determines that it cannot avail Services from the Consultant in accordance with applicable law, then CRISIL may terminate this Agreement or any particular services, immediately upon written notice to consultant.

22. **Anti-Bribery & Corruption**

Each Party represents, warrants and undertakes that:

(a)It has not and shall not offer, promise, give, encourage, solicit, receive or otherwise engage in acts of bribery or corruption in relation to this Letter (including without limitation any facilitation payment), or to obtain or retain business or any advantage in business for any member of its group, and has and shall ensure to the fullest extent possible that its employees and agents and others under its direction or control and directly involved in providing Services under this Letter do not do so. For the purposes of this clause it does not matter if the bribery or corruption is (i) direct or through a third party; (ii) of a public official or a private sector person; (iii) financial or in some other form; or (iv) relates to past, present, or future performance or non-performance of a function or activity whether in an official capacity or not, and it does not matter whether or not the person being bribed is to perform the function or activity to which the bribe relates, or is the person who is to benefit from the bribe. For the purposes of this clause, a "person" is any individual, partnership, company or any other legal entity, public or private.

(b)Each Party shall, adhere to applicable anti-bribery and corruption laws.

(c)Each Party shall, immediately upon becoming aware of them, give the other Party all details of any non-compliance with Clause (a) and Clause (b).

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Foundation

(d)It is a condition of this Letter that each Party fully complies with this Clause. If it does not do so, without prejudice to any other remedy available to a party, the non-breaching party shall have the right (but not the obligation) in its absolute discretion to terminate the whole of this Letter, or that part of this Letter to which the bribery or corruption relates. For the avoidance of doubt, any breach of this Clause shall be deemed to be incapable of remedy.

For CRISIL FOUNDATION.

AGREED AND ACCEPTED BY THE WITHIN NAMED CONSULTANT

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ANNEXURE A

Process Name	Name of the Project
Project	MoneyWise Centre for Financial Literacy
Key Roles and Responsibilities:	**Details:** A Data Entry Operator will be looking after the data entry of CFL center. She/he will be positioned at base blocks. She/he will report into the Centre Manager. **Qualifications and skills required:** • Higher Secondary passed in any discipline with at least 1 year of experience in data management, MIS and documentation. • Proficiency in using MS Excel, MS Word, Emails and online data entry platforms. • Good knowledge of using smart phones and apps like WhatsApp, Facebook and online meeting platforms etc; • Proficiency in typing Hindi and basic English, like correct spellings of individuals, places; as well as ability to type a minimum of 25-30 words per minute. **Desirable:** • Resident of the Base block. • Connects easily with people – team members, Visitors to CFLs including villagers and stakeholders in absence of Centre Manager. • A team player. • Willingness to do desk job on daily basis • Partially or fully vaccinated for COVID-19 **Key Roles and Responsibilities:** • Entry of field trainings and activity data by inputting text based and numerical information from documents received by field team on daily basis. • Primary review of data received from field team for deficiencies or errors, correct any incompatibilities if possible. • Generate reports, store completed work in designated locations and perform backup operations for the centres. • Store field activity pictures, videos, press reports, Linkage evidence and other centre level multimedia data in designated locations. • Scan documents and print files, when needed. • Proper storage/filing of all physical documents at designated location at centre in coordination with Centre Manager. • Keep information confidential. • Supporting Centre Managers in the compilation and timely submission of all Invoices on monthly basis from CFLs; • Any other support activity as deemed necessary for the project.

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	Reporting – • Prepare and share monthly report on the progress, challenges, corrective measures and outcomes Supporting in any other work that is deemed necessary by the reporting managers for achieving the objectives of the project;
Payout Schedule	Service Fee will be paid to the Consultant on a ***monthly*** basis, less required deductions, any applicable taxes, statutory and regulatory needs.

*** Payout can change with time to time and will be informed accordingly.**

***TDS for contract with CRISIL Foundation would attract as per applicable law.** Payment would be received in the month subsequent to the month of rendering the Services, subject to appropriate funds being received from RBI. Any discrepancy in the payment received needs to be reported to us in writing within 7 days of receipt of payment after which, it will be considered as correct and further claims will not be entertained.

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ANNEXURE B

· Fees – Your total monthly fees would be Rs.7000.00/- (Excluding Mobile, Travelling)

* Travelling allowance of Rs 2000/- and Mobile -internet of Rs.500.00/- A monthly allowance for the purpose of travel and mobile will be paid to you as per the company policy under CFL project. Policy is subjective to change and the Company may change any of these benefits from time to time by a written notice to you.

- Date of Joining: **02-April-2024**
- **Area of operation**:

State	District	Base Block
Mizoram	Aizawl	Darlawn